

THE PUNJAB PURE FOOD ORDINANCE, 1960

(Ordinance VII of 1960)

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SCHEDULE I

SCHEDULE II

'THE PUNJAB PURE FOOD ORDINANCE, 1960

(Ordinance VII of 1960)

[11 March 1960]

An Ordinance to consolidate and amend the law relating to the preparation and sale of foods in the province of²[the Punjab].

Preamble.— WHEREAS it is expedient to consolidate and amend the law relating to the preparation and sale of foods in the province of³[the Punjab];

Now, THEREFORE, in pursuance of the Presidential Proclamation of the seventh day of October, 1958, and having received the previous instructions of the President, the Governor of West Pakistan is pleased, in exercise of all powers enabling him in that behalf, to make and promulgate the following Ordinance:-

PART I

PRELIMINARY

1. Short title, extent and application.— (1) This Ordinance may be called ⁴[the Punjab] Pure Food Ordinance, 1960.

⁵[(2) It extends to the whole of the province of ⁶[the Punjab], except the Tribal Areas.]

(3) It shall come into operation⁷ in respect of such food or generally in respect of such areas as Government may by notification direct.

⁸[2. Definitions.— In this Ordinance, unless the context otherwise requires, the following expressions shall have the meanings hereby respectively assigned to them, that is to say—

(1) “adulterated food” means an article of food—

(i) which is not of the nature, substance or quality which it purports or is represented to be, or

(ii) which contains any such extraneous substance as may affect adversely the nature, substance or quality thereof, or

(iii) which is processed, mixed, coloured, powdered or coated with any other substance in contravention of the rules, or

(iv) any constituent of which has been wholly or in part abstracted so as to affect injuriously its nature, substance or quality, or

¹This Ordinance was promulgated by the Governor of West Pakistan on 20th Nov., 1959; published in the West Pakistan Gazette (Extraordinary), dated 11th March, 1960; pages 1445-64; saved and given permanent effect by Article 225 of the Constitution of the Islamic Republic of Pakistan (1962).

Although repealed by the Punjab Food Authority Act 2011 (XVI of 2011), however, by virtue of the following subsection (3) of section 1 (commencement clause) of Act XVI of 2011, the 1960 Ordinance is still in force in some areas of the Province:

“(3) It shall come into force on such date as the Government may, by notification, specify and different dates may be so specified for different areas.”

For the reason mentioned above, the 1960 Ordinance has recently been amended by Act VI of 2016 originated as Ordinance XXVI of 2015.

²Substituted by the Punjab Laws (Adaptation) Order, 1974 (Pb. A.O. 1. of 1974), for “West Pakistan”.

³Substituted by the Punjab Laws (Adaptation) Order, 1974 (Pb. A.O. 1. of 1974), for “West Pakistan”.

⁴Substituted by the Punjab Laws (Adaptation) Order, 1974 (Pb. A.O. 1. of 1974), for “West Pakistan”.

⁵Substituted by the West Pakistan Pure Food (Amendment) Act, 1963 (II of 1963).

⁶Substituted by the Punjab Laws (Adaptation) Order, 1974 (Pb. A.O. 1. of 1974), for “West Pakistan”.

⁷Came into operation in Quetta and Kalat divisions with effect from 28th September, 1961, in respect of all foods, *see* Gazette of West Pakistan, 1961, Pt. I, p. 523.

Came into operation in all the areas of West Pakistan except in the Tribal Areas with effect from 9th August, 1963, *see* Gazette of West Pakistan 1963, Pt. I, p. 1064.

⁸Substituted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965).

- (v) which contains any poisonous or other ingredient which may render it injurious to health, or
- (vi) the quality or purity of which does not conform to the prescribed standard, or
- (vii) which having been prepared, packed or kept under insanitary conditions, has been contaminated or become injurious to health;
- (2) “*banaspati*” means such article of food resembling ghee as is prepared by hydrogenation of edible vegetable oil and contains no milk or animal fat;
- (3) “butter” means an article of food derived exclusively from the milk of cow or buffalo or from cream or *dahi* prepared from such milk, whether with or without salt or other prescribed preservative;
- (4) “*charbi*” means an article of food which resembles ghee or banaspati, but contains animal fat other than milk fat;
- (5) “Chemical Examiner” means—
 - (i) the ¹[Chief] Chemical Examiner to Government, and
 - (ii) any other officer appointed by Government to be the ²[Chief] Chemical Examiner for the purposes of this Ordinance;
- ³[(5a) “Code” means the Code of Criminal Procedure, 1898 (V of 1898);]
- (6) “cream” means the portion of the milk of cow or buffalo which is rich in fat and rises to the surface of milk on standing or which has been separated by skimming or otherwise;
- (7) “dahi” means the product obtained by lactic acid fermentation of milk;
- ⁴[(8) “Director” means an officer notified by the Government to perform the functions of Director in a specified area;]
- (9) “food” means any article used as food or drink for human consumption other than drugs, and includes—
 - (i) any substance which is intended for use in the composition or preparation of food;
 - (ii) any flavouring matter or condiment;
 - (iii) any colouring matter intended for use in food;
 - (iv) chewing-gum and other products of the like nature; and
 - (v) water in any form, including ice, intended for human consumption or for use in the composition or preparation of food.

Explanation— An article shall not cease to be food by reason only that it is also capable of being used as a medicine.

- (10) “ghee” means ghee prepared exclusively from butter;
- (11) “Government” means the ⁵[Provincial Government of the Punjab];
- (12) “godown” means a place where articles of food are received or stored for sale or delivery to a customer or consignee, and includes godowns of the Railways, and of shipping or other transport agencies;
- (13) “Health Officer” means the ⁶[District Officer (Health) or Deputy District Officer (Health)], and includes a Medical Officer of Health, an Assistant Medical Officer of

¹Inserted by the Punjab Pure Food (Amendment) Ordinance, 2001 (LIV of 2001).

²Inserted by the Punjab Pure Food (Amendment) Ordinance, 2001 (LIV of 2001).

³Inserted by the Punjab Pure Food (Amendment) Act 2016 (VI of 2016).

⁴Substituted by the Punjab Pure Food (Amendment) Act 2016 (VI of 2016) for the following:

“(8) “Director” means the Executive District Officer (Health)”

⁵Substituted by the Punjab Laws (Adaptation) Order, 1974 (Pb. A.O. 1. of 1974), for “Government of West Pakistan”.

⁶Substituted for the words “District Health Officer or the Assistant District Health Officer” by the Punjab Pure Food (Amendment) Ordinance, 2001 (LIV of 2001).

Health of a Local Authority, and any other person appointed by Government to be Health Officer for the purposes of this Ordinance;

(14) “Inspector” means an Inspector appointed under this Ordinance;

¹[(15) “Local Authority” means:

- (i) a local government as defined in the Punjab Local Government Act 2013 (XVIII of 2013) or any other law for the time being in force; and
- (ii) an authority which the Government may, by notification in the official Gazette, declare to be a Local Authority for purposes of this Ordinance;]

(16) “Margarine” means any food, whether mixed with butter or not, which resembles butter and is not milk blended butter;

(17) “Milk” means the normal, clean and pure secretion obtained from the udders of a healthy cow, buffalo, goat or sheep, whether boiled, pasteurized, homogenized or sterilized, and includes standardized and toned milk;

(18) “misbranded food” means an article of food—

- (i) which is imitation of, or a substitute for, or resembles, in a manner likely to deceive, another article of food, and is sold or is intended to be sold under the name under which such other article is sold, or is not correctly labelled to indicate its true character, or
- (ii) which is so coloured, flavoured, coated, powdered or polished as to conceal the true nature thereof, or
- (iii) which is contained in any package which, or the label of which, bears any statement, design or device regarding the ingredients or the substances contained therein, which is false or misleading in any material particular, or if the package is otherwise deceptive with respect to its contents, or
- (iv) which is not properly packed and labelled in accordance with the rules;

(19) “occupier” means the person who has control of the affairs of a factory, shop or godown and includes the manager or managing agent or any other person authorised to represent the occupier;

(20) “package” includes every article in which goods for carriage or for sale are cased, covered, enclosed, contained or packed;

(21) “pre-packed” means packed or made up in advance ready for retail sale in a wrapper or container;

(22) “prescribed” means prescribed by rules;

(23) “Public Analyst” means Public Analyst appointed under this Ordinance;

(24) “retail sale” means any sale to a person buying otherwise than for the purpose of re-sale;

(25) “rules” means rules made under this Ordinance;

(26) “sale” in relation to food, means a transfer of ownership either by way of barter or in exchange for a price paid or promised or part paid and part promised;

(27) “standardized milk” means milk which has been reduced to the prescribed level of milk fat by removal of fat;

(28) “toned milk” means milk which has been standardized to the prescribed level of milk fat and solids by addition of reconstituted milk solids;

¹ Substituted by the Punjab Pure Food (Amendment) Act 2016 (VI of 2016) for the following:

“(15) “Local Authority” means—

- (i) City District Government or Tehsil Municipal Administration or Town Municipal Administration constituted under the Punjab Local Government Ordinance, 2001; and
- (ii) an authority declared by Government, by notification in the official Gazette, to be a Local Authority for the purposes of this Ordinance;”

- (29) “transit” includes all stages of transportation from the place of manufacture or other source of origin to the consumer; and
 (30) “wholesale” means any sale other than retail sale.]

PART II

GENERAL PROVISIONS

3. False warranty.— No person shall in respect of any food sold by him or given by him for sale to an agent give to the purchaser or his agent a false warranty in writing.

4. Prohibition of mixing and selling mixed food.— (1) No person shall mix, colour, stain or powder or direct or permit any other person to mix, colour, stain or powder any food with any matter or ingredient—

- (a) in contravention of the prescribed rules; or
- (b) so as to render the food injurious to health with intent that the same may be sold in that state.

(2) No person shall sell, offer, keep or store any food so mixed, coloured, stained or powdered.

¹**5. Prohibition of sale, preparation, manufacture, import or export of unwholesome food intended for human consumption.**— No person shall, directly or indirectly, himself or by any other person—

- (a) prepare, manufacture, keep or store for sale, or sell or offer to sell, any food which is unsound, unwholesome, injurious to health or unfit for human consumption; or
- (b) import or export any food in such manner or in such condition as renders it or is likely to render it injurious to health.]

²**6. Prohibition of sale or manufacture for sale of food which is adulterated or misbranded or not of the nature, substance or quality demanded.**— (1) No person shall, directly or indirectly himself or by any other person, prepare, manufacture, keep or store for sale, or sell or offer to sell any food—

- (a) which is adulterated;
- (b) which is misbranded;
- (c) which is not of the nature, substance or quality demanded, or which it purports or is represented to be;
- (d) for the sale of which a licence is required otherwise than in accordance with the conditions of the licence;
- (e) in contravention of any other provision of this Ordinance or the rules.

(2) No person shall directly or indirectly, himself or by any other person, manufacture, sell, offer to sell, keep or store for sale any food notified in this behalf by Government, unless it is coloured in the manner prescribed.

(3) Government may, by notification in the official Gazette, prohibit or regulate the keeping, in any factory or wholesale business premises in which such articles of food as are specified in the notification are manufactured or stored, of any substances likely to be used as adulterants as so specified.]

¹Substituted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965).

²Substituted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965).

¹[7. **Sale of prepacked food.**— No person shall keep or store for sale, or sell or offer to sell, any prepacked food unless he has complied with the rules made in this behalf.]

²[8. **Prohibition of sale of food without complying with rules.**— No person shall import, export, prepare, manufacture, keep or store for sale or sell any food unless the rules providing for the mode of its manufacture, processing or preparation, packaging, labelling, consignment, delivery, standard of quality or bill of containers have been complied with.]

³[9. **Sale of margarine, *banaspati* and *charbi*.**— (1) *Banaspati*, *charbi* and margarine shall be packed, labelled or marked in such manner as may be prescribed.

(2) No person shall sell, whether wholesale or retail, or transport by way of trade, any *banaspati*, *charbi* or margarine unless every package containing any such substance is durably marked or labelled in such manner as may be prescribed.]

⁴[10. ***Banaspati*, margarine or *charbi* not to be sold loose.**— No person shall sell *banaspati*, margarine or ⁵[*charbi*] loose or from an open package:

Provided that *banaspati* may be so sold under a licence and subject to such conditions as may be prescribed in this behalf.]

⁶[11. **Licence for manufacture, storage and sale of goods.**— (1) No place shall be used—

(a) for the preparation, or the manufacturing, processing, blending, preserving, refrigerating, canning or bottling of any food;

(b) for the business of a wholesale dealer in *banaspati*, *charbi*, *ghee*, margarine, fish oil, mustard oil, cotton seed oil or other edible oils and such food as may be prescribed;

(c) as a creamery, dairy or bakery;

(d) as a hotel, restaurant or eating house;

except under a licence to be granted in such manner and by such authority as may be prescribed:

Provided that Government may exempt any specified premises or class of premises from the operation of this section.

(2) The licence required under this section may be renewed annually on payment of prescribed fees.

(3) The renewal of a licence may be refused, or a licence may be cancelled by the authority granting the licence, if—

(i) the licensee fails to maintain the register referred to in section 12, or is convicted of an offence under this Ordinance; or

(ii) the premises is not maintained in such condition as may be prescribed.

(4) No person shall keep or store for sale, or sell or offer to sell any food for human consumption unless he is in possession of such identification permit as may be prescribed.

⁷[12. **Register for manufacture and wholesale business.**— Every occupier of a place used for the preparation or manufacture for the purposes of trade of any such article of food as

¹Substituted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965).

²Substituted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965).

³Substituted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965).

⁴Substituted by the West Pakistan Pure Food (Amendment) Act, 1963 (II of 1963).

⁵Substituted, for the word “*charbini*”, by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965).

⁶Substituted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965).

⁷Substituted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965).

Government may, by notification in the official Gazette, specify in this behalf, and every wholesale dealer or his agent who stores any such article, shall keep and maintain a register in such form as may be prescribed, and such register shall be open to inspection, by the Inspector.

¹[**13. Food poisoning.**— (1) If a Health Officer or an Inspector has reason to suspect that any food or any vessel or utensil with which food may come in contact is likely to cause food poisoning (acute, chronic or cumulative) by chemical or bacteriological agents, he may take a sample of such food or the vessel or the utensil for analysis under this Ordinance, and if he takes a sample, give notice to the person incharge of the food that, until the result of the analysis is known, the food or any specified portion thereof shall not be used and shall be kept or removed in the manner specified in the notice.

(2) If a Health Officer has reason to suspect that tuberculosis is likely to be caused by the consumption of milk supplied from any dairy or other source, he may, by notice to the person incharge of such dairy or source, prohibit the supply of milk from such dairy or source.

(3) If a person is, in the opinion of the Local Authority, suffering from any communicable disease, the Local Authority may, by notice to such person, prohibit him from preparing, manufacturing, selling or offering to sell any article of food for human consumption.

(4) A Health Officer may, by notice to any person handling articles of food in any hotel, restaurant, sweetmeat shop, or any other public eating place, require him to obtain and keep in his possession a health certificate from a Health Officer to the effect that he is free from communicable disease, and to get it renewed from year to year, till such time as he continues so to handle such articles.

(5) Every person to whom a notice under this section has been given shall comply with such notice.

(6) Wherever practicable, the Health Officer shall instruct the owner of the dairy or other source from which milk is supplied to carry out such remedial measures as considered necessary by him, and if these are complied with to his satisfaction, the notice issued under sub-section (2) shall be withdrawn.

Explanation— Persons debarred under sub-section (3) shall have to produce a certificate as laid down in sub-section (4).]

PART III ANALYSIS OF FOOD

14. Appointment of Public Analysts.— Government may, by notification², appoint Public Analysts for the purposes of this Ordinance, for the whole or any part of the province, for any specified food or generally for all foods.

³[**15. Local Authorities to enforce the Ordinance.**— It shall be the function of every Local Authority to carry into execution and enforce the provisions of this Ordinance within its jurisdiction with a view that all articles of food and drink are sold in a pure and genuine state.]

¹Substituted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965).

²For notification *see* West Pakistan Government Gazette, Part I, 1964, pp. 720, 959 and 1032; 1965, p. 728.

³Substituted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965).

¹[16. Appointment of Inspectors.— (1) Government may appoint Inspectors in respect of all or any specified food, and an Inspector so appointed shall have jurisdiction in such area as Government may direct².

(2) Subject to any rules made in this behalf, a Local Authority shall appoint Inspectors in respect of all or any specified food and an Inspector so appointed, shall, unless the Local Authority otherwise directs, exercise the powers and perform the functions of an Inspector under this Ordinance throughout the area over which such Local Authority has jurisdiction.

(3) The Director may exercise the powers and perform the functions of an Inspector under this Ordinance ³[* * *] or any other officer working under the Director may exercise such powers and perform such functions of an Inspector within such area as the Director may, by order in writing, direct.

(4) The Health Officers and Sanitary Inspectors of Local Authorities and such other holders of offices and posts in or under a Local Authority and such officers in the service of Government, as Government may, by notification in the official Gazette, specify in this behalf, shall be *ex-officio* Inspectors of all foods within the limits of their respective jurisdiction.]

17. General powers of Inspectors.— (1) An Inspector may detain and search any vehicle or package of any food intended for sale or in the course of delivery if he has reason to suspect that the food therein carried or contained may be injurious to health, unwholesome or unfit for human consumption or is not of the same nature, substance or quality which it purports to be:

Provided that nothing in this section shall authorise the detention of any vehicles belonging to the railways.

(2) An Inspector may ⁴[* * *]

- (i) enter into and inspect any market, godown, shop, stall or other place used for the sale of any food intended for human consumption or for the preparation, manufacture or storage of any such food for the purposes of trade or sale;
- (ii) enter upon any premises for the purposes of exercising the powers of purchasing or taking a sample under section 18 and may in such premises inspect and examine any food and any apparatus, utensils or vessel used for preparing, manufacturing or containing such food ⁵[;]
- ⁶[(iii) enter into and inspect any market, godown, shop, stall or other place used for the manufacture, storage or sale of any apparatus, utensil or vessel ordinarily used or intended to be used or likely to be used for preparing, manufacturing or containing any food.]

⁷[(3) If any such food as is mentioned in sub-section (1) or clause (i) of sub-section (2) appears to the Inspector to be injurious to health, unwholesome, unfit for human consumption or not of the same nature, substance or quality which it purports to be, or not fulfilling the prescribed conditions subject to which such food is to be prepared, manufactured, kept, stored or sold, or if any such apparatus or utensil as is mentioned in clause (ii) of sub-section(2) is of such kind or in such state as to render any food prepared, manufactured or contained therein

¹Substituted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965).

²For notifications, *see* West Pakistan Government Gazette, Part I, 1963, pp. 643, 980, 1043 and 1064; 1964 pp. 568, 1031-32 and 1965, pp. 976 and 1359.

³The words “and any Assistant Director” deleted by the Punjab Pure Food (Amendment) Ordinance, 2001 (LIV of 2001).

⁴The words, “at such time as may be prescribed”, omitted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965).

⁵Substituted by the West Pakistan Pure Food (Amendment) Act, 1963 (II of 1963), for the full stop.

⁶Added by the West Pakistan Pure Food (Amendment) Act, 1963 (II of 1963), for the full stop.

⁷Substituted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965).

unwholesome or unfit for human consumption or injurious to health, he may seize and remove such food, apparatus or utensil to be dealt with as hereinafter provided.]

(4) An Inspector may, instead of removing such food, apparatus, utensil or vessel seized under sub-section (3), leave the same in the custody of the person from whose possession, custody or control the same was seized or in such safe custody as he may deem fit, so as to be dealt with as hereinafter provided and he may at any time thereafter remove the same to the custody of the ¹[Local Authority] concerned.

(5) (a) When any food, apparatus, utensil or vessel is seized under sub-section (3), it may be destroyed by the officer making the seizure with the consent ²[in writing] of the owner or the person in whose possession, custody or control it is found.

³[(b) If any food seized under sub-section (3) is of a perishable nature and is, in the opinion of the Inspector, unsound, unwholesome or unfit for human consumption it may be destroyed without such consent but in the presence of two respectable witnesses.]

⁴[(6) An Inspector shall prepare a statement describing the food, apparatus or utensil seized and shall deliver a copy thereof to the Local Authority and to the person from whose custody the food, apparatus or utensil is seized, or, if such person be not present, send such copy to him by post].

(7) (a) Any person claiming anything seized under sub-section (3) may within seven days of the seizure complain to any ⁵[Special Court] having jurisdiction at the place of seizure, who, after making such enquiry as he may deem necessary, may either confirm or disallow such seizure wholly or in part or may order the article to be restored to the claimant;

(b) If the ⁶[Special Court] confirms the seizure, the food, apparatus, utensil or vessel, as the case may be, shall be forfeited to the ⁷[Local Authority] concerned or the ⁸[Special Court] may direct that such food, apparatus, utensil or vessel may be destroyed or disposed of at the cost of the owner or person in whose possession, custody or control it was found at the time of the seizure in such manner as to prevent the same being again kept, stored or used as food or for the manufacture or preparation of, or for containing, any such food.

(8) If no complaint is made within the said period of seven days, the article of food or the apparatus, utensil or vessel, as the case may be, seized shall be confiscated to the ⁹[Local Authority] concerned.

¹⁰[(9) Subject to the direction of the District Food Committee, an Inspector may seal any premises where he believes that any food which is adulterated food or which is unsound, unwholesome, injurious to health or unfit for human consumption is prepared, manufactured, preserved, packaged, stored, conveyed, distributed or sold.

(10) While performing functions of entry, inspection, taking samples, seizure or sealing, the Inspector shall use or caused to be used electronic devices to generate electronic evidence of any of his actions under the Ordinance.]

¹Substituted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965) for the words "Food Authority".

²Inserted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965).

³Substituted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965).

⁴Substituted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965).

⁵Substituted for the words "magistrate of the first class" by the Punjab Pure Food (Amendment) Act 2016 (VI of 2016).

⁶Substituted for the words "magistrate" by the Punjab Pure Food (Amendment) Act 2016 (VI of 2016).

⁷Substituted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965), for the words "Food Authority".

⁸Substituted for the words "magistrate" by the Punjab Pure Food (Amendment) Act 2016 (VI of 2016).

⁹Substituted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965), for the words "Food Authority".

¹⁰ Inserted by the Punjab Pure Food (Amendment) Act 2016 (VI of 2016).

¹[18. Purchase of samples, etc.]— (1) An Inspector may, for the purpose of analysis, purchase a sample of food—

- (a) in transit;
- (b) sold, offered for sale, hawked about, kept or stored or received for the purpose of preparing therewith any food; or
- (c) kept or stored in a market, godown, shop, stall, hotel, restaurant or eating house for the purpose of trade or sale or received therein for the purpose of preparing or manufacturing therewith any food.

(2) No person shall refuse to sell food to an Inspector intending to purchase for the purpose of sub-section (1) in such reasonable quantity and from such container as he may ask for.

Explanation— The purchase or sale of a sample of any food for the purpose of analysis under this Ordinance shall be deemed to be purchased or sold for human consumption or use.

(3) If, in contravention of sub-section (2), any person refuses to sell the food to the Inspector, the Inspector may, without prejudice to any penalty to which such person may be liable for such contravention, seize such quantity of the food as may appear to him to be necessary, and shall give such person a certificate showing the price, nature and quantity of the food seized, the date, time and place of seizure, and on demand being made in that behalf, the price of the food seized.

(4) The Inspector shall prepare in such form as may be prescribed, a declaration in triplicate containing full particulars relating to the sample seized and such declaration shall be signed or marked both by the Inspector and the person from whose possession, custody or control the food has been seized, and a copy thereof shall be given to such person.

(5) When a sample is taken from the stock in the possession of a commission agent, he shall be bound to give the name and such other particulars of the person on whose behalf such stock is held by him as the Inspector may require.]

²[19. Right of private persons to have samples analysed.]— (1) Any person may make an application in writing to an Inspector asking him to purchase a sample of such food and from such person as may be specified in the application and to submit sample to the Public Analyst for analysis.

(2) The cost of the sample purchased and of the analysis done under sub-section (1) shall be payable by the person making the application:

Provided that, in case the sample is found by the Public Analyst to be adulterated, any amount paid by the applicant under this sub-section shall be refunded to him.]

20. Methods of taking samples.— (1) An Inspector after purchasing or procuring or seizing any food with the intention of submitting the same for analysis shall, forthwith, divide the food in three parts to be then and there separated and each part shall be marked, sealed or fastened in such manner as the nature of the case will permit; and the person from whom the sample is taken may, if he so desires, also affix his seal or mark on each of the three parts.

(2) An Inspector shall—

- (a) if required to do so, deliver one part to the person from whom the article is purchased or seized or the sample is taken;
- (b) retain one part for future comparison; and
- (c) submit one part to the Public Analyst:

¹Substituted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965).

²Substituted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965).

Provided that where the sample is taken from any food which is about to be imported or is in transit or at the place of delivery to the purchaser, consumer or consignee or is un-claimed, the first-mentioned part of the sample shall be retained by Inspector, unless the name and address of the consignor appear on the container containing the article sampled, in which case he shall forward that part to the consignor by registered post or otherwise, together with a notice informing that person that the sample would be analysed by the Public Analyst.

21. Certificate of Analysis.— (1) The Public Analyst upon receiving any food or a sample of food from the Inspector shall, as soon as possible, analyse the same and deliver or send to the Inspector forwarding the sample, on payment of such fees as may be prescribed, a certificate in the form specified in the ¹[* * * *] ²[Schedule I] showing the result of the analysis.

³[* * * * *].

⁴[(2)] A copy of such certificate may be obtained from the Public Analyst by the person from whom the article so analysed was purchased or obtained on payment of a fee of two rupees.

⁵[(3)] No person shall display any such copy on his premises or use such copy as an advertisement.

22. Power of Government to have articles analysed.— Government may, in relation to any matter appearing to it to affect the general interests of the consumers of any food, direct any public servant to procure for analysis, samples of such food and thereupon such public servant shall have all the powers of an Inspector under this Ordinance:

Provided that—

- (a) the public servant upon receiving the certificate of the Public Analyst shall take proceedings or cause proceedings to be taken as if he himself had caused such analysis to be made;
- (b) any fee prescribed for such analysis, the cost of the sample and the expenditure incurred in procuring it, including the travelling allowance, if any, of the public servant procuring the same shall be payable by the ⁶[Local Authority] of the area from where the sample is procured.

PART IV

PENALTIES AND PROCEDURE

⁷**23. Selling food against the law.**— A person who sells or offers for sale any adulterated food or food which is not in compliance with the provisions of this Ordinance or the rules

¹The word “Second” deleted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965).

²Substituted for the expression “Schedule” by the Punjab Pure Food (Amendment) Act 2016 (VI of 2016).

³Sub-section (2) deleted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965).

⁴The original sub-section (3) re-numbered as sub-section (2) by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965).

⁵The original sub-section (4) re-numbered as sub-section (3) by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965).

⁶Substituted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965), for the words “Food Authority”.

⁷Substituted by the Punjab Pure Food (Amendment) Act 2016 (VI of 2016) for the following:

“**23. Penalties.**— (1) Whoever contravenes any of the provisions of section 3, 4, 5, 6, 7, 8, 9, 10, 11 or 13 shall be punished—

(a) for a first offence, with rigorous imprisonment for a term which may extend to one year, and with fine ranging from one hundred rupees to two thousand rupees;

(b) for a second offence, with rigorous imprisonment for a term which shall not be less than three months and not more than two years, and with fine ranging from five hundred rupees to ten thousand rupees;

(c) for repeated offences or for offences of large scale adulteration or adulteration with injurious substances, even in the first instance, with rigorous imprisonment for a term which shall not be less than three years and not more than five years, and with fine ranging from five thousand rupees to one lakh rupees.

shall be liable to imprisonment for a term which may extend to six months but which shall not be less than one month and fine which may extend to one million rupees but which shall not be less than one hundred thousand rupees.]

¹[23A. Offence by large scale manufacturers.]— Notwithstanding anything contained in section 23, if a person manufactures, keeps, transports, imports or exports adulterated food for large scale use or consumption in quantities equal to or in excess of the quantities mentioned in Schedule II appended to this Ordinance, he shall be liable to imprisonment for a term which may extend to five years but which shall not be less than six months and fine which may extend to two million rupees but which shall not be less than five hundred thousand rupees.”

23B. Substandard or misbranded food.— Any person who manufactures for sale, stores, sells, distributes, imports or exports any food which is not of the requisite standard or is misbranded, shall be liable to imprisonment for a term which may extend to six months but which shall not be less than one month and fine which may extend to one million rupees but which shall not be less than one hundred thousand rupees.

23C. Unsafe food.— (1) An occupier, who manufactures for sale, stores, sells, distributes, imports or exports any unsafe or unwholesome food, shall be liable:

- (a) where the unsafe food does not result in injury to any person, to imprisonment for a term which may extend to six months but which shall not be less than one month and fine which may extend to one million rupees but which shall not be less than one hundred thousand rupees;
- (b) where such unsafe food results in injury to any person, to imprisonment for a term which may extend to three years but which shall not be less than three months and fine which may extend to one million rupees but which shall not be less than one hundred thousand rupees; or
- (c) where such unsafe food results in death of a person, to imprisonment for a term which may extend to imprisonment for life but which shall not be less than ten years and fine which may extend to three million rupees but which shall not be less than two million rupees.

(2) In this section and section 23D, ‘unsafe food’ means the food whose nature, substance or quality is so affected by any means or for any reasons as to render it injurious to human health.

23D. Unhygienic or unsanitary conditions.— Any person, who manufactures or processes or keeps any food under unhygienic or unsanitary conditions, shall be liable to imprisonment for a term which may extend to six months but which shall not be less than three days and fine which may extend to one million rupees but which shall not be less than twenty thousand rupees.

23E. Business without licence.— If a person manufactures, sells, offers for sale, stores or distributes or imports any food without licence, he shall be liable to imprisonment for a term

(2) Whoever contravenes any of the provisions of section 12, section 18 or section 21 or of any rule, shall be punished with imprisonment for a term which may extend to one year and with fine.

(3) Any person who attempts to contravene, or abets the contravention of any of the provisions mentioned in sub-section (1) or sub-section (2) shall be punishable with the same punishment as is provided for such contravention.”

¹Substituted by the Punjab Pure Food (Amendment) Act 2016 (VI of 2016) for the following:

“**23-A. Power to try summarily.**— Notwithstanding anything to the contrary contained in the Code of Criminal Procedure, 1898, any magistrate for the time being empowered to try in a summary way the offences specified in sub-section (1) of section 260 of the Code of Criminal Procedure, 1898, may try summarily any offence made punishable under clause (a) of sub-section (1) of section 23 of this Ordinance or sub-section (2) of the said section in accordance with the provisions of Chapter XXII of that Code.”

which may extend to one year but which shall not be less than three days and fine which may extend to five hundred thousand rupees but which shall not be less than ten thousand rupees.

23F. False advertisement.— (1) Any person, who for purposes of effecting or promoting the sale of any food, publishes or causes to be published, any advertisement which –

- (a) falsely describes any food, or
- (b) is contrary to any rules or regulations; or
- (c) is likely to deceive a purchaser with regard to the character, nature, value, substance, quality, strength, purity, composition, merit or safety, weight, proportion, origin, age or effects of any food or of any ingredient or constituent of the food, shall be liable to imprisonment for a term which may extend to one year but which shall not be less than six months and fine which may extend to two million rupees but which shall not be less than one million rupees.

(2) Any person, who publishes or causes to be published an advertisement, which does not contain the true name of the person by whom the advertisement is published or the address of his place of business, shall be liable to imprisonment for a term which may extend to one year but which shall not be less than six months and fine which may extend to two million rupees but which shall not be less than one million rupees.

23G. False labeling.— (1) Any person, who prepares, packages, labels any food which does not comply with the prescribed standard, shall be liable to imprisonment for a term which may extend to one year but which shall not be less than six months and fine which may extend to one million rupees but which shall not be less than five hundred thousand rupees.

(2) Any person, who labels any food in a manner which is false, misleading or deceptive as regards its character, nature, value, substance, quality, composition, merit or safety, strength, purity, weight, origin, age or proportion shall be liable to imprisonment for a term which may extend to one year but which shall not be less than six months and fine which may extend to one million rupees but which shall not be less than five hundred thousand rupees.

23H. Residuary offences.— Subject to this Part, if a person violates any provision of the Ordinance and no penalty is prescribed for such violation, he shall be liable to imprisonment which may extend to one year or fine which may extend to one million rupees or both.

23I. Punishment for subsequent offence.— (1) If any person, after having been previously convicted of an offence under this Ordinance, again commits any offence under the Ordinance, he shall be liable to:

- (a) twice the punishment of imprisonment and fine, which is provided for the offence under the Ordinance; and
 - (b) an additional fine which may extend to two hundred thousand rupees.
- (2) The licence of a person convicted under sub-section (1) shall be cancelled.

23J. Compensation for injury to consumer.—(1) In case of injury or death of a consumer due to unsafe food, the Special Court, in addition to any other penalty under this Ordinance, shall direct the responsible person to pay compensation to the consumer or legal heirs of the consumer, an amount which is:

- (a) not less than one million rupees in case of death; and
- (b) not exceeding five hundred thousand rupees in case of injury.

23K. Cognizance of offences.— (1) An offence under this Ordinance shall be cognizable on a complaint of an officer authorized by the Government.

(2) If the offence causes death of, or injury to, a person, the aggrieved person may also file a complaint in the Special Court under Chapter XVI of the Code of Criminal Procedure 1898 (V of 1898).

(3) The offences under section 23A and clauses (b) and (c) of section 23C shall be non-bailable.

23L. Special Court.— (1) An offence punishable under this Ordinance shall be exclusively triable by the Special Court established by the Government and where it establishes more than one Special Courts, it shall specify the territorial limits within which each Special Court shall exercise jurisdiction under the Ordinance.

(2) A Special Court shall consist of a presiding officer and two technical members.

(3) The Government shall send a panel of two or more persons to the Chief Justice of Lahore High Court and the Chief Justice shall recommend a person in the panel for appointment as the presiding officer of a Special Court.

(4) Subject to subsection (3), the Government may appoint a person as presiding officer of a Special Court who has not less than:

- (a) five years' experience as a Magistrate first class; or
- (b) ten years' experience as a prosecutor, law officer or advocate; or
- (c) ten years' experience in the service of Pakistan and is a law graduate.

(5) The Government shall appoint a person as technical member of a Special Court and determine terms and conditions of service of the presiding officer and technical members in the prescribed manner.

(6) The presiding officer and at least one technical member shall constitute quorum for a sitting of a Special Court.

(7) A decision of a Special Court shall be expressed in terms of the opinion of the majority, or if the case has been decided by the presiding officer and only one of the members and there is a difference of opinion between them, the decision of the Special Court shall be expressed in terms of the opinion of the presiding officer.

(8) If the Special Court is not established or it is not functional in an area, a Magistrate exercising powers under section 30 of the Code for the area shall be deemed to be Special Court under this Ordinance.

23M. Summary trial.— (1) Notwithstanding anything contained in the Code but subject to sub-section (3), the Special Court shall summarily try an offence punishable under this Ordinance and may impose punishment of imprisonment for a term not exceeding six months or fine not exceeding one million rupees.

(2) The Special Court shall conduct the summary trial of an offence under the Ordinance in accordance with the provisions of Chapter XXII of the Code relating to the summary trials.

(3) If the Special Court is of opinion that the nature of the offence does not justify summary trial, it may conduct proceedings in accordance with the provisions of Chapter XX of the Code.

23N. Appeal.— (1) The Government or the person sentenced by a Special Court may, within thirty days from the date of communication of the order, file an appeal against a final order of the Special Court to Lahore High Court.

(2) Save as provided in this Ordinance or rules, no court shall take cognizance or revise a sentence, or transfer any case from a Special Court, or make order under sections 426, 491 or 498 of the Code or have jurisdiction of any kind in respect of any proceedings of the Special Court.

230. Transfer of cases.— (1) A case regarding any matter within the jurisdiction of a Special Court, pending in any court immediately before the establishment of a Special Court under this Ordinance, shall stand transferred to the Special Court which has jurisdiction to try such case.

(2) Lahore High Court may transfer a case from one Special Court to another Special Court or from a Special Court to any other court or from any other court to a Special Court.]

24. Presumption.— In every prosecution under this Ordinance relating to any food the Court shall presume—

- (a) that any food found in possession of any person, who is or has been habitually found manufacturing, selling, keeping, storing, offering or exposing for sale or hawking about such food, was being manufactured, sold, kept, stored, offered or exposed for sale or hawked about by such person;
- (b) that any food commonly used for human consumption is sold, kept or stored for human consumption;
- (c) that any food commonly used for human consumption, which is found on premises used for the preparation or manufacture of such food, was intended to be prepared or manufactured for human consumption;
- (d) that any substance capable of being used in the manufacture or preparation of any food commonly used for human consumption, which is found on premises in which such food is manufactured or prepared, was intended to be used in the manufacture or preparation of such food;
- (e) that any food is not of the nature, substance or quality it purports to be, if it is deficient in any of its normal constituents to the extent specified in the rules made under this Ordinance or if any extraneous matter has been added to it in contravention of such rules.

25. Declaration under section 18 to be evidence.— A declaration signed or marked under sub-section (4) of section 18 may be produced as evidence of the facts contained therein in any enquiry, trial or other proceedings under this Ordinance.

26. Certificate of Public Analyst to be evidence of fact therein stated.— (1) The production in any enquiry, trial or other proceeding under this Ordinance of a certificate under the hand of a Public Analyst in the form specified in the ¹[* * *] Schedule shall, until the contrary is proved, be sufficient evidence of the facts therein stated.

(2) When any person is accused of an offence under this Ordinance, he may require the court to summon as a witness the Public Analyst who analysed the food or sample of food in respect of which he is accused of having committed an offence and the court may, and shall, in every case in which the accused deposits in the court a sum of money in accordance with the scale prescribed, summon the Public Analyst, and if such person is acquitted, any sum of money so deposited shall be refunded to him.

27. Analysis by ²[Chief] Chemical Examiner.— (1) The court may of its own accord or on the request of the accused cause any food or sample of food to be sent for analysis to the ³[Chief] Chemical Examiner to Government, who shall thereupon with all convenient speed analyse the

¹The word “second” deleted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965).

²Inserted by the Punjab Pure Food (Amendment) Ordinance, 2001 (LIV of 2001).

³Inserted by the Punjab Pure Food (Amendment) Ordinance, 2001 (LIV of 2001).

same and report the result of the analysis to the court in the form specified in the ¹[* * *]Schedule, and the cost of such analysis shall be paid by the accused if the Court so directs.

(2) The certificate of the ²[Chief] Chemical Examiner to Government shall, until the contrary is proved, be sufficient evidence of the facts therein stated, but if the Court considers it necessary in the interests of justice it may summon him to give evidence in connection with the certificate issued by him, and in such a case the cost of summoning the ³[Chief] Chemical Examiner to Government shall be paid by the accused or the ⁴[Local Authority] as the Court may direct.

(3) The provisions of sub-section ⁵[(3)] of section 21 shall apply in respect of the report of the ⁶[Chief] Chemical Examiner.

28. What is or is not a good defence in a prosecution under the Ordinance.— (1) In any prosecution under this Ordinance relating to any food it shall be no defence to allege—

- (a) that the accused was ignorant of the nature, substance or quality of the food, or
- (b) that the purchaser having bought only for analysis was not prejudiced.

(2) The seller shall not be deemed to have committed an offence under this Ordinance if he proves—

- (a) that the food sold was purchased or obtained as agent by him as being of the same nature, substance or quality as that demanded by the purchaser and with written warranty to the effect that it was of such nature, substance or quality;
- (b) that he had no reason to believe at the time when he sold it that the food was not of such nature, substance or quality as required; and
- (c) that he sold it in the same state in which he purchased it.

(3) No evidence of a warranty under clause (a) of sub-section (2) shall be admissible on behalf of the seller—

- (a) unless the seller has ⁷[on or before the first day of hearing of the case in the Court against him] sent to the Inspector a copy of the warranty (together with a translation thereof in English) with a notice stating that he intends to rely on it and specifying the name and address of the person from whom he received it and has also sent a like notice of his intention to that person; and
- (b) unless such warranty is given by a person permanently residing or carrying on business in Pakistan.

⁸[(4) The Court shall summon the warrant or as a co-accused if it admits the warranty on behalf of the seller.]

29. Forfeiture of food upon conviction.— In the case of any conviction under this Ordinance the convicting ⁹[Special Court] may order that any food to which the conviction

¹The word “second” deleted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965).

²Inserted by the Punjab Pure Food (Amendment) Ordinance, 2001 (LIV of 2001).

³Inserted by the Punjab Pure Food (Amendment) Ordinance, 2001 (LIV of 2001).

⁴Substituted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965), for the word “Food Authority”.

⁵Substituted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965), for the brackets and figure “(4)”.

⁶Inserted by the Punjab Pure Food (Amendment) Ordinance, 2001 (LIV of 2001).

⁷Substituted for the words “within seven days of the service of the summons upon him”, by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965).

⁸Added by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965).

⁹Substituted for the word “magistrate” by the Punjab Pure Food (Amendment) Act 2016 (VI of 2016).

relates, together with all packages or vessels containing the same, shall be confiscated to Government and disposed of as the ¹[Special Court] may direct.

30. Expenses of analysis to be paid by offenders on conviction.— When any person is convicted of an offence under this Ordinance, the convicting ²[Special Court] shall order that all fees and other expenses incidental to the analysis of any food in respect of which the conviction is made, which shall in no case be less than thirty rupees, be paid by the person convicted, in addition to the fine, if any, which he may be sentenced to pay and the amount of such fees and expenses may be recovered as if it were a fine.

³[31. * * * * *]

⁴[32. * * * * *]

PART V MISCELLANEOUS

⁵[33. Protection of action taken under the Ordinance.— No suit, prosecution or other legal proceeding shall lie against any person for anything which is in good faith done or intended to be done in pursuance of any provision of this Ordinance].

34. Inspector to be deemed public servant.— An Inspector while exercising any of the functions conferred upon him by or under this Ordinance and all other persons assisting him in discharging such functions shall be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code⁶.

35. Power of Government to appoint a public servant to exercise the functions of any ⁷[Local Authority].— (1) If the ⁸[Director] receives information from the Director or has reason to believe that a ⁹[Local Authority] has failed to execute or enforce any of the provisions of this Ordinance in relation to any food and that the failure affects the general interest of the consumers, he may, after making such inquiry, from the ¹⁰[Local Authority] as he thinks fit, by order empower any public servant to execute or enforce these provisions or to procure the execution or enforcement thereof in relation to such food and the order may fix a reasonable remuneration to be paid to such public servant, and such remuneration together with any expenses incurred by the public servant in performing the duties of the ¹¹[Local Authority] under this Ordinance shall be paid by the local authority.

¹Substituted for the word “magistrate” by the Punjab Pure Food (Amendment) Act 2016 (VI of 2016).

²Substituted for the word “magistrate” by the Punjab Pure Food (Amendment) Act 2016 (VI of 2016).

³The following section omitted by the Punjab Pure Food (Amendment) Act 2016 (VI of 2016):

“**31. Offences under the Ordinance not to be tried by a magistrate exercising lesser powers than magistrate of the first class.**— No offence under this Ordinance or the rules made thereunder shall be triable by a magistrate exercising power less than those of a magistrate of the first class.”

⁴The following section omitted by the Punjab Pure Food (Amendment) Act 2016 (VI of 2016):

“**32. Complaint to be filed by whom.**— No Court shall take cognizance of any offence punishable under this Ordinance except on the report in writing of the facts constituting such offence made by a Health Officer of a Local Authority or an Inspector authorized in this behalf by a general or special order of the Director or Government.”

⁵Substituted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965)

⁶XLV of 1860.

⁷Substituted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965), for the words “Food Authority”.

⁸Substituted for the words “Executive District Officer (Health) of a district” by the Punjab Pure Food (Amendment) Act 2016 (VI of 2016).

⁹Substituted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965), for the words “Food Authority”.

¹⁰Substituted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965), for the words “Food Authority”.

¹¹Substituted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965), for the words “Food Authority”.

(2) If the expenses and remuneration are not so paid the ¹[Director] may make an order directing any person who for the time being has custody of any moneys on behalf of the local authority, as its officer, treasurer, banker or otherwise, to pay such expenses and remuneration from such money as he may have in his hands or may from time to time receive, and such person shall be bound to obey such order.

(3) When the ²[Director] makes any order under this section, he shall forthwith forward to the ³[District Coordination Officer] and to the local authority affected thereby a copy of the order with a statement of the reasons for making it, and it shall be in the discretion of the ⁴[District Coordination Officer] to rescind the order, or to direct that it may continue in force with or without modifications.

(4) The ⁵[District Coordination Officer] shall forthwith submit to Government a report of every case occurring under this section, and Government may confirm, revise or modify the order, or make in respect thereof any other order which the ⁶[District Coordination Officer] could have made:

Provided that no order of the ⁷[Director] or the ⁸[District Coordination Officer] passed under this section shall be confirmed, revised or modified by Government without giving the local authority a reasonable opportunity of showing cause against such order.

⁹[35A. Task Force].— (1) The Government may, by notification, constitute a Task Force for two or more Districts.

(2) A Task Force shall consist of a Chairperson and such other members as the Government may appoint on such terms and conditions as the Government may determine.

(3) A Task Force, within its area of jurisdiction, shall:

- (a) implement policies of the Government for effective enforcement of the Ordinance;
- (b) advise the Government on policies for effective legal and administrative framework to ensure availability of nutritious, hygienic and safe food to consumers;
- (c) set targets with time lines to achieve them;
- (d) ensure that the provisions of this Ordinance are enforced in a manner that the objectives of the Ordinance are achieved;
- (e) monitor working of the District Food Committees, Directors, Inspectors and Health Officers;
- (f) submit report to the Government on the performance of the enforcement machinery with reference to the implementation of the Ordinance;
- (g) receive and redress public grievances by issuing directions to the District Food Committee; and
- (h) perform such other functions as the Government may assign.

(4) The Task Force shall meet at least once every fifteen days.

(5) The Chairperson shall convene a meeting of the Task Force.

¹Substituted for the words “Executive District Officer (Health)” by the Punjab Pure Food (Amendment) Act 2016 (VI of 2016)

²Substituted for the words “Executive District Officer (Health)” by the Punjab Pure Food (Amendment) Act 2016 (VI of 2016)

³Substituted for the word “Commissioner” by the Punjab Pure Food (Amendment) Ordinance, 2001 (LIV of 2001).

⁴Substituted for the word “Commissioner” by the Punjab Pure Food (Amendment) Ordinance, 2001 (LIV of 2001).

⁵Substituted for the word “Commissioner” by the Punjab Pure Food (Amendment) Ordinance, 2001 (LIV of 2001).

⁶Substituted for the word “Commissioner” by the Punjab Pure Food (Amendment) Ordinance, 2001 (LIV of 2001).

⁷Substituted for the words “Executive District Officer (Health)” by the Punjab Pure Food (Amendment) Act 2016 (VI of 2016)

⁸Substituted for the word “Commissioner” by the Punjab Pure Food (Amendment) Ordinance, 2001 (LIV of 2001).

⁹ Inserted by the Punjab Pure Food (Amendment) Act 2016 (VI of 2016):

(6) A meeting shall be presided by the Chairperson and in his absence, by a member of the Task Force nominated by the Chairperson.

(7) One half of the members shall constitute the quorum for a meeting, a fraction being counted as one.

35B. District Food Committee.— (1) The Government shall, in each district, constitute a District Food Committee which shall be headed by the District Coordination Officer and the Director shall be the Secretary of the Committee.

(2) The District Food Committee shall:

- (a) exercise all the powers of an Inspector under this Ordinance;
- (b) set targets with time lines to achieve them for the availability of nutritious, hygienic and safe food to consumers;
- (c) conduct or cause to be conducted inspections of premises where food is prepared, manufactured, preserved, packaged, stored, conveyed, distributed or sold;
- (d) spearhead, monitor, coordinate and supervise the work and performance of the Inspectors, Directors, Health Officers and other relevant persons;
- (e) implement or cause to be implemented the directions of the Task Force; and
- (f) perform such any other functions as the Government may be assign.

35C. Monthly report.— (1) A District Food Committee shall, each month, submit to the Divisional Task Force a report about the performance of the Inspectors, Directors and Health Officers especially with respect to the protection of public health, provision of safety and standards of food during the month under report and the steps taken and likely to be taken to achieve the purposes of the Ordinance.

(2) The Task Force may, after considering the report, issue such directions to the District Food Committee as may be necessary for achieving the purposes of the Ordinance and the District Food Committee shall implement the directions.

35D. Monitoring and evaluation.— (1) The Government shall, at least once in a year, conduct or cause to be conducted, the performance audit of the Task Forces and District Food Committees to assess and evaluate their performance in accomplishing the objectives of this Ordinance.

(2) The Government shall evaluate the report mentioned in subsection (1) and shall, on the basis of the report, issue such directions to the Task Force or the District Food Committee as may be necessary for accomplishing the objectives of this Ordinance and the Task Force or District Food Committee shall implement the directions.]

[36. Delegation of functions.— The Government may delegate any of its functions under this Ordinance to a Task Force or a District Food Committee or a Director or any officer by name or designation, except the function of framing of rules under section 37.]

37. Power to make rules.— (1) Government may frame rules² for the purpose of carrying into effect the provisions of this Ordinance.

¹Substituted by the Punjab Pure Food (Amendment) Act 2016 (VI of 2016) for the following:

“**36. Delegation.**— Government may delegate all or any of its powers and functions under this Ordinance to the Director or any other officer by name or designation.”

²Issued by Health Department notification No. H.S.O. (F. and N.)1/3-63, dated 21st August, 1965, Government of West Pakistan Gazette 1965 (Extraordinary), dated 17th September, 1965, pages 4950-87.

(2) In particular and without prejudice to the generality of the foregoing power, Government may frame rules—

- (a) prescribing the qualifications of persons who may be appointed Public Analysts for the purpose of this Ordinance;
- (b) regulating the appointment and qualifications of persons to be appointed as Inspectors under this Ordinance;
- (c) prescribing the methods of analysis to be followed by Public Analysts for the analysis of any food;
- (d) fixing the fees to be paid in respect of the analysis of any food by a Public Analyst;
- (e) prohibiting the use of any particular matters or ingredients in the manufacture or preparation of any food;
- (f) specifying the conditions (which include the addition of a colour or any other substance) subject to which any food shall be manufactured, sold, kept, stored, offered or exposed for sale;
- (g) prohibiting the keeping or storage of foods other than those approved under the rules;
- (h) securing the cleanliness and freedom from contamination of any food in the course of its manufacture, preparation, storage, packing, carriage delivery or exposure for sale, and securing the cleanliness of places, receptacles, packages, wrappings, appliances and vehicles used in such manufacture, preparation, storage, packing, carriage or delivery;
- (i) prescribing the method in which labels shall be affixed, languages in which the labels shall be printed and the symbols which shall be used for different kinds or foods;
- (j) prescribing the manner in which, and the conditions subject to which, a licence is to be granted under section 11;
- (k) prescribing the form, and the particulars to be entered in the register to be kept under section 12;
- (l) authorising a person taking a sample of milk or any other food for the purpose of analysis to add preservatives to such samples for maintaining it in a suitable condition for analysis and regulating the nature and method of addition of such preservatives;
- (m) prohibiting the use or addition as a preservative of any article, material or substance in the manufacture or preparation for sale of any food;
- (n) prescribing the fees which a local authority may levy for the grant of a licence; and
- (o) prescribing the fees to be deposited in Court for summoning a Public Analyst.

¹[38.] Repeal and savings.—(1) The following enactments are hereby repealed:-

- (a) the Punjab Pure Food Act, 1929²;
- (b) the Punjab Pure Food Act, 1929, in its application to the territories which formed the North-West Frontier Province before the establishment of West Pakistan;
- (c) the Bahawalpur State Pure Food Act, 1946;
- (d) the Sind Foods Act, 1947³;

¹The original section 39 which was incorrectly numbered as such, was renumbered as section 38 by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965).

²Pb. VII of 1929.

¹[(*dd*) the Sind Food Act, 1947², as applicable to Karachi;]

(*e*) the Khairpur Prevention of Adulteration Act, 1941;

(*f*) the North-West Frontier Province Artificial Ghee Colourization Act, 1939³.

(2) Notwithstanding the repeal of the enactments mentioned in sub-section (1), everything done and all action taken, obligation, liability, penalty or punishment incurred, inquiry or proceeding commenced, officer appointed or person authorised, jurisdiction or power conferred, rule made and notification issued under any provisions of the said enactments shall, if not inconsistent with the provisions of this Ordinance, continue in force and be deemed to have been respectively done, taken, incurred, commenced, appointed, authorised, conferred, made or issued under this Ordinance.

(3) The areas to which any of the enactments enumerated in sub-section (1) applied before the commencement of this Ordinance, shall be considered to have been duly notified under sub-section (3) of section 1 of this Ordinance.

³Sind XLII of 1947.

¹Added by the West Pakistan Pure Food (Amendment) Act, 1963 (II of 1963).

²Sind XLII of 1947.

³N.W.F.P XII of 1939.

¹[* * * * *]

²[* * *] ³[SCHEDULE I]

[SECTION 21]

FORM OF CERTIFICATE

[ADMISSIBLE AS EVIDENCE UNDER SECTION 26(1)]

To * _____

I, _____, Public Analyst for the _____ do hereby certify that I received on the _____ day of _____ 19 _____ from

personally

** _____ by post a packet said to contain

by Mail

a sample of _____ for analysis *** (alleged to have been despatched by him on the _____ day of _____ 19 _____).

2. The packet was sealed with _____ seals bearing the impression on the invoice hereunto attached, and the seals were opened in my presence, and the contents of the packet were duly examined by me, and remained under my immediate custody until the analysis was completed.

3. I have analysed the said sample, and declare the result of my analysis to be as follows:-

I am of opinion that the same is a sample of (Genuine) _____ **** which conforms (or does not conform) to the standard of _____ prescribed by the rules made under the West Pakistan⁴ Pure Food Ordinance, 1960, in the following respects:-

Signed this _____ day of _____ 19 _____ at _____ A.B.

* Here insert the name of the person submitting the article for analysis.

** Here insert the name of the person delivering the packet or if received by post or railway the name of the sender.

*** Not to be filled up if the packet is delivered personally.

**** Score out from here in case no standard prescribed.

¹First Schedule omitted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965).

²The word "Second" omitted by the West Pakistan Pure Food (Amendment) Act, 1965 (V of 1965).

³Substituted for the heading "Schedule" by the Punjab Pure Food (Amendment) Act 2016 (VI of 2016)

⁴Now "Punjab", see by the Punjab Laws (Adaptation) Order, 1974 (Pb. A.O. 1. of 1974).

¹[SCHEDULE II

Sr#	Article of Food	Quantity
1	Milk	500 litre
2	Ghee, Butter,	1000 kg
3	Khoya	1000 kg
4	Edible oils & fats	1000 litre
5	Tea	250 kg
6	Atta, Maida, Suji, Basin	1000 kg
7	Sugar, Honey, <i>Gur</i> , <i>Shakar</i> or other sweeteners	1000 kg
8	Prepared food	100 kg
9	Ketchup, Sauces & Pickles	250 kg
10	Aerated Carbonated water	1000 litre
12	Spices	250 kg
13	Cereal & Cereal Product(other than Atta)	500 kg
14	Snack Products	500 kg
15	Confectionary	250 kg
16	Ice Cream, Kulfi, cream, condensed milk, cheese, Yogurt	250 kg
17	Baby Foods	100 kg
18	Milk Powders	500 kg
19	Syrup, sherbets, Fruit and Vegetable concentrates	500 litre
20	Water	500 litre
21	Vegetables & Fruits	200 kg
22	Meat & Poultry	200 kg
23	Meat & Poultry (If section 2(1)(i) is attracted)	20 kg
24	Foods not specified.	250 kg]

¹Inserted by the Punjab Pure Food (Amendment) Act 2016 (VI of 2016)